IN THE HIGH COURT OF BALOCHISTAN, QUETTA
Present:
* Hon'ble Mr. Justice Shahid Waheed
* Hon'ble Mr. Justice Musarrat Hilali

Civil Appeal No. 729 of 2020
Citation: PLD 2020 Lah 363
Matter ID: MAT-CORP-2020-091

BETWEEN:
Chaudhry Pervaiz Iqbal ... Appellant / Petitioner
VERSUS
Securities & Exchange Commission of Pakistan ... Respondent

LEGAL TOPIC: Corporate - Director Disqualification
STATUTES CITED: Companies Act 2017, S. 153, S. 204, Securities and Exchange Commission of Pakistan Act 1997

JUDGMENT
1. This judgment disposes of Civil Appeal No. 729 of 2020, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Companies Act 2017, S. 153 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Companies Act 2017, S. 153 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 9 October 2020.